

25STCV31438 25STCV31438

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV31438 Hearing Date: August 26, 2026 Dept: 735

Supply & Demand, Inc. v. Kaye,

et al.

Motion to Compel Defendant Anthony Kaye's Further Responses

to Requests for Production of Documents, Set One

On

June 11, 2026, Plaintiff filed a motion to compel Defendant Anthony Kaye to

provide further responses to Requests for Production, Set One. Kaye's

opposition filed on August 13, 2026, contends Plaintiff's motion is largely

moot because Kaye served supplemental responses on August 13 and, in any event,

the responses subject to this motion were Code-compliant in any case. Plaintiff

filed a reply on August 19, 2026, arguing Kaye's responses remain insufficient

and the substance of the motion therefore remains unresolved.

Effect of Supplemental Responses

The

Court does not accept Kaye's unilateral assertion that Plaintiff's motion is moot, particularly given that Plaintiff's reply contends otherwise. Plaintiff's motion is properly and timely directed to the responses that were operative when the motion was filed and served. If Kaye's recent supplement satisfies the instant order in certain respects, the parties can resolve the issue via meeting and conferring after the hearing.

The

Court rules as follows on the Requests at issue.

RPD No. 1

Denied.

The objection based on overbreadth is sustained.

RPD No. 2

Granted.

The objections are overruled, except those based on privilege and work-product.

If the response remains one of inability to comply, it must specify whether the documents have been lost or whether they never existed.

RPD No. 3

Granted.

The objections are overruled, except those based on privilege and work-product.

If the response remains one of inability to comply, improper qualifications to

that response must be omitted.

RPD Nos. 4-5

Granted.

The objections are overruled, except those based on privilege and work-product,
and any documents withheld on that basis must be identified in a privilege log.

The contention that “certain documents might be produced” subject to a
protective order is not a response. If Kaye required a protective order, he
should have filed a motion.

RPD No. 6

Granted.

The objections are overruled, except those based on privilege and work-product,
and any documents withheld on that basis must be identified in a privilege log.

RPD Nos. 7-16

The

Court makes the same order as for RPDs Nos. 4-5.

RPDs Nos. 19-20

The

Court makes the same order as for RPD No. 6.

SANCTIONS

A

party prevailing on a motion to compel further discovery responses is entitled to monetary sanctions unless its opponent demonstrates substantial justification or other injustice. (Code Civ. Proc., § 2031.310(h).) Plaintiff has prevailed almost entirely on its motion, and Kaye has failed to demonstrate substantial justification for his failure to provide timely substantive responses to any of Plaintiff's requests, even where he agreed that "certain documents might be produced." Plaintiff is entitled to sanctions.

Plaintiff

seeks \$7,552.50 in sanctions against Kaye and his counsel, jointly and severally. Plaintiff has not demonstrated sanctions against counsel are warranted, and the amount Plaintiff demands is excessive. The Court awards Plaintiff 5.0 hours for motion, opposition, and reply, plus 1.0 hour to appear, at Plaintiff's counsel's \$795.00 hourly rate, for total sanctions of \$4,770.00 against defendant Anthony Kaye only.

CONCLUSION

The

court grants Plaintiff's motion in part, on the terms set forth above.

Defendant

Anthony Kaye is ordered to provide supplemental responses consistent with this

Order and pay \$4,770.00 to Plaintiff and/or its counsel of record within 30

days of this order.

Plaintiff

to give notice.